

**UNITED STATES BANKRUPTCY COURT
DISTRICT OF CONNECTICUT
BRIDGEPORT DIVISION**

	X	
In re:	:	Chapter 11
	:	
HO WAN KWOK, <i>et al.</i> , ¹	:	Case No. 22-50073 (JAM)
	:	
Debtors.	:	(Jointly Administered)
	:	
	X	
LUC A. DESPINS, CHAPTER 11 TRUSTEE,	:	
	:	
Plaintiff,	:	Adv. Proceeding No. 24-05252
	:	
v.	:	
	:	
GETTR USA, INC,	:	
	:	
Defendant.	:	
	X	

DEFAULT JUDGMENT

On May 19, 2026, the Court granted the motion of Luc A. Despins, as chapter 11 trustee (the “Trustee”) of the estate of Ho Wan Kwok (the “Debtor”) for entry of default judgment against defendant Gettr USA, Inc (the “Defaulting Defendant”).² (*See* ECF No. 38). In accordance with Fed. R. Civ. P. 58(a), made applicable to this adversary proceeding pursuant to Fed. R. Bankr. P. 7058, a default judgment hereby enters as follows:

1. Judgment in the amount of \$59,453.40 is hereby GRANTED in favor of the

¹ The Debtors in these chapter 11 cases are Ho Wan Kwok (also known as Guo Wengui, Miles Guo, and Miles Kwok, as well as numerous other aliases) (last four digits of tax identification number: 9595), Genever Holdings LLC (last four digits of tax identification number: 8202) and Genever Holdings Corporation. The mailing address for the Trustee, Genever Holdings LLC, and the Genever Holdings Corporation is Paul Hastings LLP, 200 Park Avenue, New York, NY 10166 c/o Luc A. Despins, as Trustee for the Estate of Ho Wan Kwok (solely for purposes of notices and communications).

² Capitalized terms not expressly defined herein shall adopt the meanings ascribed to them in the *Memorandum of Law* in support of the Motion.

Trustee and against the Defaulting Defendant on the First Claim of the Complaint. Postjudgment interest on the judgment in the amount of \$59,453.40 is awarded at the rate set forth in 28 U.S.C. § 1961 from the date of the entry of this judgment. Given the specific facts and circumstances of the Debtor's jointly administered Chapter 11 cases and the related adversary proceedings, including this adversary proceeding, the Court, in its discretion,³ awards prejudgment interest at the prime rate of 8.5% in effect on February 15, 2024 (the date the Original Complaint was filed) through the date of the entry of this judgment.⁴

2. With respect to First Claim of the Complaint, pursuant to sections 548(a)(1)(A) and 550(a) of Title 11 of the United States Code (the "Bankruptcy Code"):

- a. the Prepetition Transfers, in an aggregate amount of not less than \$59,453.40, were made by the Debtor through his alter ego GFNY Inc, with the actual intent to hinder delay, and defraud his creditors;
- b. the Prepetition Transfers are avoided pursuant to Section 548(a)(i)(A) of the Bankruptcy Code;
- c. the Prepetition Transfers are hereby set aside;
- d. at the Trustee's election, pursuant to Section 550(a)(1) of the Bankruptcy Code, the Trustee may recover the Prepetition Transfers or the value thereof, \$59,453.40, from the Defaulting Defendant for the benefit of the Debtor's estate; and
- e. judgment on the First Claim of the Complaint, to the extent of the Prepetition Transfer and in the amount of \$59,453.40, is entered in favor of the Trustee and against the Defaulting Defendant.

3. Judgment in the amount of \$59,453.40 is hereby GRANTED in favor of the Trustee and against the Defaulting Defendant on the Second Claim of the Complaint. Postjudgment interest on the judgment in the amount of \$59,453.40 is awarded at the rate set forth

³ *In re Palermo*, 739 F.3d 99, 106 (2d Cir. 2014); *In re Colonial Realty Corp.*, 226 B.R. 513, 526–27 (Bankr. D. Conn. 1998).

⁴ *45 John Lofts, LLC v. Meridian Cap. Group, LLC et al. (In re 45 John Lofts, LLC)*, 650 B.R. 602, 621–22 (Bankr. S.D.N.Y. 2023); *Coan v. Dunne*, No. 3:15-cv-00050 (JAM), 2021 WL 3012678, at *26 (D. Conn. July 15, 2021).

in 28 U.S.C. § 1961 from the date of the entry of this judgment. Given the specific facts and circumstances of the Debtor's jointly administered Chapter 11 cases and the related adversary proceedings, including this adversary proceeding, the Court, in its discretion,⁵ awards prejudgment interest at the prime rate of 8.5% in effect on February 15, 2024 (the date the Original Complaint was filed) through the date of the entry of this judgment.⁶

4. With respect to the Second Claim of the Complaint, pursuant to section 544(b) of the Bankruptcy Code and N.Y. Debt. & Cred. Law sections 273(a)(1), 274, and 276:

- a. the Prepetition Transfers, in an aggregate amount of not less than \$59,453.40, were made by the Debtor through his alter ego GFNY Inc, with the actual intent to hinder delay, and defraud his creditors;
- b. the Prepetition Transfers are avoided pursuant to Section 544(b) of the Bankruptcy Code and N.Y. Debt. & Cred. Law sections 273(a)(1), 274, and 276;
- c. the Prepetition Transfers are hereby set aside;
- d. at the Trustee's election, pursuant to Section 550(a)(1) of the Bankruptcy Code and N.Y. Debt. & Cred. Law section 276, the Trustee may recover the Prepetition Transfers or the value thereof, \$59,453.40, from the Defaulting Defendant for the benefit of the Debtor's estate; and
- f. judgment on the Second Claim of the Complaint, to the extent of the Prepetition Transfer and in the amount of \$59,453.40, is entered in favor of the Trustee and against the Defaulting Defendant.

5. Judgment in the amount of \$35,599,740.00 is hereby GRANTED in favor of the Trustee and against the Defaulting Defendant on the Third Claim of the Complaint. Postjudgment interest on the judgment in the amount of \$35,599,740.00 is awarded at the rate set forth in 28 U.S.C. § 1961 from the date of the entry of this judgment. Given the specific facts and circumstances of the Debtor's jointly administered Chapter 11 cases and the related adversary

⁵ See cases cited *supra* note 3.

⁶ See cases cited *supra* note 4.

proceedings, including this adversary proceeding, the Court, in its discretion,⁷ awards prejudgment interest at the prime rate of 8.5% in effect on February 15, 2024 (the date the Original Complaint was filed) through the date of the entry of this judgment.⁸

6. With respect to the Third Claim of the Complaint, pursuant to section 549 of the Bankruptcy Code:

- a. the Postpetition Transfers, in an aggregate amount of not less than \$35,599,740.00, were made by the Debtor through his through his beneficially owned companies Hamilton Opportunity Fund SPC and ACA Capital Group Ltd, and his alter ego GFNY Inc, after the Petition Date;
- b. when transferred, the Postpetition Transfers constituted property of the Debtor's estate;
- c. the Postpetition Transfers were not authorized under the Bankruptcy Code or by the Court;
- d. the Postpetition Transfers are hereby set aside;
- e. at the Trustee's election, pursuant to Section 550(a)(1) of the Bankruptcy Code, the Trustee may recover the Postpetition Transfers or the value thereof, \$35,599,740.00, from the Defaulting Defendant for the benefit of the Debtor's estate; and
- f. judgment on the Third Claim of the Complaint, to the extent of the Postpetition Transfers and in the amount of \$35,599,740.00, is entered in favor of the Trustee and against the Defaulting Defendant.

7. The Trustee is authorized to take all actions necessary or appropriate to effectuate this judgment. This judgment is effective immediately and the stay provided in Fed. R. Bankr. P. 7062 to execute on and enforce this judgment is not in effect.

8. This Court shall retain jurisdiction with respect to all matters arising from or related to the implementation, interpretation, and enforcement of this judgment.

Dated at Bridgeport, Connecticut this 19th day of May, 2026.

Julie A. Manning
United States Bankruptcy Judge
District of Connecticut

⁷ See cases cited *supra* note 3.

⁸ See cases cited *supra* note 4.